

		Pursuant to Code of Civil Procedure sections 2030.290(c), 2031.300(c), and 2033.280(c), the court imposes monetary sanctions against Rosalia Mattern in the amount \$2,120.00 (5.0 hours x \$400 ph + \$120.00 in filing costs). <u>ORDERS</u> The court ORDERS Respondent Rosalia Mattern to respond to the Form Interrogatories, Set Two, without objection within 10 days of notice of this ruling, extended for method of service. The court DEEMS ADMITTED Requests for Admission Nos. 8-12. The court imposes reasonable sanctions of \$2,120.00 against Respondent Rosalia Mattern payable within 30 days of notice of this ruling, extended for method of service, or any further date as agreed upon by the parties in writing. Counsel for moving party is ordered to give notice of this ruling. Alternatively, counsel for moving party may elect to prepare, file, and serve a Proposed Order After Hearing.
01498382	Sample - Conservatorship	TENTATIVE RULING Case: Sample - Conservatorship 01498382 Calendar No: 2 Date: 09/23/26 MOTION TO SEAL (ROA 101) Conservator Tafrica Leggett moves to seal court records. (ROA 101.) Unless confidentiality is required by statute or rule of court, California court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550(c).) "Probate proceedings . . . are not closed proceedings. No statute exempts probate files from the status of public records." (<i>Copley Press, Inc. v. Superior Court</i> (1998) 63 Cal.App.4th 367, 376.) When individuals employ the public powers of state courts to accomplish private ends, "they do so in full knowledge of the possibly disadvantageous circumstance that the documents and records filed ... will be open to public inspection." (<i>Ibid.</i>)

Absent circumstances not present here, the court may seal the records at issue only if it expressly finds facts establishing that:

1. There exists an overriding interest that overcomes the right of public access to the record;
2. The overriding interest supports sealing the record;
3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
4. The proposed sealing is narrowly tailored; and
5. No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550(d).)

The party moving to have a record sealed bears the burden of proving such facts. (See *H.B. Fuller Company v. Doe* (2007) 151 Cal.App.4th 879, 894-895.)

Here, Conservator states that "documents have been filed that contain sensitive and personal information, including medical records, social security numbers, and copies of our drivers licenses." Conservator requests that the court "seal or redact the sensitive documents."

While the court agrees that the foregoing material could be sealed, the Conservator did not specifically identify any document or portions of documents that she wishes to be sealed, nor did the Conservator provide redacted copies of such documents for the public record.

The court notes that many documents in this case are already sealed (i.e., ROAs 2, 3, 7, 22, 38, 40, 48, 71, 72, 73, 74, 80, 93, 94, 98, 99, and 111.) On the record presented, it is not clear which, if any, further documents or portions of documents should be sealed.

The Conservator has not complied with California Rules of Court, rules 2.550-2.551, which rules set forth the procedures for sealing of public court records.

There are other procedural defects. The motion fails to comply with Code of Civil Procedure section 1010 and California Rules of Court, rule 3.1110(a) in that it fails to give notice of the nature of the order sought and the grounds for the issuance of the order. It further fails to comply with California Rules of Court, rules 3.1112, 3.1113 and 3.1115.

The court further notes that there is no proof of service accompanying this motion.

Based on the foregoing, the court's tentative ruling is to **deny the motion without prejudice** to the Conservator's